

Comparing sharia and international human rights on belief

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USER PROMPT

Write a concise, self-contained article entry for the title: "Comparing sharia and international human rights on belief".

Overall topic for alignment: Apostasy (ridda) and freedom of religion in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Summary: Sharia and International Human Rights on Belief

Core Tension

The article examines the friction between classical Islamic jurisprudence (*fiqh*) and international human rights regarding freedom of religion, focusing on apostasy (*ridda*). UDHR Article 18 and ICCPR Article 18 protect the rights to have, change, and manifest religion—rights contested in classical sharia.

Quranic and Textual Basis

The Quran contains anti-coercion verses (notably Q 2:256, "no compulsion in religion") and warns of otherworldly—but not worldly—penalties for apostasy. The classical death penalty derives from hadith (e.g., "Whoever changes his religion, kill him") and the Ridda Wars under Abu Bakr, which targeted political rebellion as much as disbelief.

Juristic and Theological Variation

- **Sunni schools:** Hanafi (death for males, imprisonment for females), Maliki, Shafi'i, and Hanbali all required *istitāba* (repentance opportunities) before capital punishment.
- **Shia Ja'fari:** Distinguishes born Muslims from converts.
- **Theology (*kalām*):** Mu'tazila, Ash'ari, Maturidi, and Sufi traditions converge in viewing genuine faith (*īmān*) as inward and uncoercible—creating tension with juristic penalties.

Historical and Modern Context

Classical *ridda* rules conflated religious and political loyalty, functioning partly as treason law. Reformist scholars (al-Alwani, Saeed) argue penalties addressed rebellion, not conscience. *Fiqh al-aqalliyāt* accommodates minority pluralistic settings. Muslim-majority states vary: Tunisia, Turkey, Indonesia don't criminalize apostasy; Saudi Arabia, Iran, Mauritania retain penalties, though capital enforcement is rare.

Competing Frameworks

- The **Cairo Declaration (1990)** subordinates rights to sharia; the **Arab Charter (2004)** uses more universalist language.
- Orientalist scholars (Goldziher, Schacht) framed sharia as static; revisionists (Hallaq, Abou El Fadl, Asad) emphasize its historical dynamism.
- Humanistic reformists (Fazlur Rahman, Arkoun, Soroush, An-Na'im) invoke *maqāṣid al-sharī'a* to argue coerced belief contradicts religion's protection.

Convergence and Divergence

Both traditions affirm belief as inward and protect worship. They diverge on the unconditional right to change religion, the legal status of religious community (inheritance, marriage), and blasphemy laws. A sharia interpretation compatible with UDHR Article 18 is intellectually viable but remains contested within Muslim scholarship, particularly against the weight of hadith and *ijmā'*.

FULL CONTENT

Comparing Sharia and International Human Rights on Belief

The question of whether a person may freely change, abandon, or critique their religion sits at the intersection of two normative systems that often speak past each other: the classical sharia of Islamic jurisprudence (*fiqh*) and the modern framework of international human rights. Nowhere is this tension more visible than in the treatment of *ridda*—apostasy—where centuries of juristic reasoning meet the universalist language of the Universal Declaration of Human Rights (UDHR). This article surveys the key concepts, schools, and debates, aiming to clarify rather than to adjudicate.

Defining the Terms

In Arabic, **sharia** (*sharī'a*) literally means "the path to water," used metaphorically for the divinely revealed way of life in Islam. It is distinguished from **fiqh**, the human juristic effort to understand and apply that path. **Ridda** denotes apostasy, the act of a Muslim leaving Islam, while a related term, **irtidād**, refers to the process. The apostate is called a **murtadd**.

In international law, the relevant standard is **freedom of thought, conscience, and religion**, articulated in Article 18 of the UDHR (1948) and reiterated in Article 18 of the International Covenant on

Civil and Political Rights (ICCPR, 1966). These instruments protect the right to *have, adopt, change*, and *manifest* a religion or belief, individually or in community, in public or private.

Quranic Foundations

The Quran contains verses cited on both sides of the freedom-of-belief debate. The most frequently invoked is "**Lā ikrāha fī al-dīn**" ("There is no compulsion in religion," Q 2:256), often read as a foundational endorsement of religious liberty. Other verses, such as Q 18:29 ("Let whoever wills believe, and whoever wills disbelieve"), and Q 10:99, reinforce a non-coercive ethos.

At the same time, several verses warn of severe **otherworldly** consequences for apostasy (e.g., Q 2:217, Q 3:86–90, Q 16:106). Notably, the Quran itself does not prescribe a specific **worldly** penalty for apostasy. The classical death penalty for *ridda* derives primarily from **hadith** literature—most famously the report "Whoever changes his religion, kill him"—and from the practice of the early caliphate, especially during the *Ridda Wars* under Abu Bakr (632–633 CE), which targeted political-military rebellion as much as personal disbelief.

The Juristic Schools

The four major Sunni schools of **fiqh** developed broadly convergent but nuanced positions:

- **Hanafi**: Adopted in much of the Ottoman world and South Asia, the Hanafi school historically prescribed death for male apostates but **imprisonment** (not execution) for female apostates, reasoning that women were not combatants. Hanafi jurists often emphasized waiting periods and opportunities for repentance (*istitāba*).
- **Maliki**: Predominant in North and West Africa, the Maliki school generally required a three-day period of *istitāba* before capital punishment, with no gender distinction in the death penalty itself.
- **Shafi'i**: Influential in Egypt, the Levant, and Southeast Asia, this school similarly required repentance opportunities and applied capital punishment to both sexes after refusal.
- **Hanbali**: Dominant in the Arabian Peninsula, often the strictest in formal doctrine, though also recognizing *istitāba*.

The major Shia school, **Ja'fari** (Twelver), distinguishes between a *murtadd fiṭrī* (born Muslim) and *murtadd millī* (convert to Islam who later leaves), with differing rules on repentance and inheritance.

Theological Currents

Beyond *fiqh*, Islamic **theological schools** (*kalām*) shaped how belief itself was conceptualized. The **Mu'tazila** emphasized human reason and free will, implying that sincere belief cannot be coerced. The **Ash'ari** and **Maturidi** schools, which became mainstream Sunni orthodoxy, accepted a more constrained role for reason but still affirmed that genuine faith (*īmān*) is an inward assent that cannot

be produced by force. **Sufi** traditions further internalized religion, treating outward conformity as secondary to spiritual realization.

This theological consensus—that authentic faith is inward—stands in productive tension with classical juristic penalties, and modern reformers frequently exploit that tension.

Historical Context: Majority and Minority Settings

Classical *ridda* rulings were forged in a context where religious identity was inseparable from political allegiance. Leaving Islam in a Muslim polity often signaled defection to an enemy community; the death penalty functioned as much as a treason statute as a heresy law. Some contemporary scholars—**Taha Jabir al-Alwani**, **Abdullah Saeed**, and others—argue that the historical penalty addressed *political rebellion* (the actual referent of the Ridda Wars), not personal conscience.

In **minority settings**, where Muslims have lived as non-dominant communities (e.g., medieval Andalusia after the Reconquista, modern Europe and the Americas), the practical enforcement of *ridda* law has been impossible and largely irrelevant. *Fiqh al-aqalliyyāt* (jurisprudence of minorities), associated with scholars like **Yusuf al-Qaradawi** and **Taha Jabir al-Alwani**, has explicitly accommodated pluralistic, rights-based environments.

In **majority settings**, modern state codes vary widely. Some Muslim-majority states (e.g., Tunisia, Turkey, Indonesia in its national code) do not criminalize apostasy. Others (e.g., Saudi Arabia, Iran, Mauritania, and at the subnational level in parts of Nigeria, Malaysia, and Sudan) retain criminal or civil penalties, though enforcement of capital punishment for apostasy *qua* apostasy is rare.

The Orientalist Perspective

Nineteenth- and early twentieth-century **orientalist** scholarship (e.g., Ignaz Goldziher, Joseph Schacht) often portrayed sharia as static and intrinsically incompatible with modern liberties. Later scholars—Wael Hallaq, Khaled Abou El Fadl, Talal Asad—have challenged this framing, arguing that classical *fiqh* was historically dynamic, plural, and responsive to context, and that the "incompatibility" thesis often projects post-Enlightenment categories backward. The orientalist legacy remains influential, however, shaping both Western policy debates and the defensive postures of some Muslim apologists.

The Universal Declaration and Islamic Responses

When the UDHR was adopted in 1948, Saudi Arabia abstained partly over Article 18. Subsequent attempts to articulate Islamic human rights instruments include:

- The **Cairo Declaration on Human Rights in Islam** (1990), which subordinates rights to sharia and does not affirm an unconditional right to change religion.

- The **Arab Charter on Human Rights** (revised 2004), which affirms freedom of belief in more universalist language.

These instruments illustrate ongoing negotiation rather than a fixed Islamic position.

A Humanistic Reading of Sharia

A humanistic approach—shared by reformist thinkers such as **Fazlur Rahman**, **Mohammed Arkoun**, **Abdolkarim Soroush**, **Abdullahi Ahmed An-Na'im**, and **Khaled Abou El Fadl**—reads sharia through its higher objectives (*maqāṣid al-sharī'a*): the protection of life, religion, intellect, lineage, and property. On this reading, coercing belief contradicts the very objective of *protecting religion*, since coerced religion is not religion at all. The Quranic principle of *lā ikrāha fī al-dīn*, the inward nature of *īmān* in classical *kalām*, and the political (rather than theological) character of the historical *ridda* penalties together support a sharia interpretation broadly compatible with UDHR Article 18.

Critics within Islamic scholarship counter that this reading underplays the weight of hadith and juristic consensus (*ijmā'*). The debate is genuine and unresolved within Muslim intellectual life.

Points of Convergence and Divergence

Convergence:

- Both traditions affirm that genuine belief is internal and uncoerced.
- Both protect the right to *hold* a religion and to worship.
- Modern Muslim-majority constitutions increasingly incorporate freedom-of-religion clauses.

Divergence:

- Classical *fiqh* historically penalized public apostasy; international human rights protect the right to change religion unconditionally.
- Sharia frameworks often treat religious community as a legal status with inheritance, marriage, and custody implications; human rights frameworks treat belief as an individual right.
- Blasphemy laws, distinct from apostasy but related, remain a significant point of friction.

Conclusion

Comparing sharia and international human rights on belief is not a contest with a clean winner. Classical *fiqh* developed sophisticated, context-bound rules; international human rights articulate universal entitlements grounded in individual conscience. The most productive contemporary conversations—within both Muslim and secular scholarship—focus on the Quran's anti-coercion principle, the inward nature of faith in Islamic theology, and the historical specificity of *ridda* rulings.

From that ground, a sharia reading aligned with Article 18 of the UDHR is intellectually available, even if it remains contested.

SEGMENTED DATA (1)

Comparing Sharia and International Human Rights on Belief

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